

Balwan Singh v. State of U.P. & Another

High Court of Judicature at Allahabad · Division Bench · 11 September 2019 · WRIT - C No. 66903 of 2009 · By interim order dated 09.12.2009 a Division Bench stayed recovery of Rs.2,09,669 (office memoranda dated 02.09.2009 and 29.10.2009) on a prima facie view that recovery made more than two years after the permanent disconnection (07.03.2006) appeared time-barred under Section 56(2) of the Electricity Act, 2003 read with Clause 6.15 of the U.P. Electricity Supply Code, 2005; the writ was admitted on 27.01.2010. For the Electricity Department's failure to file a counter affidavit for more than ten years despite that direction, the Court (17.04.2019 and 15.05.2019) directed the Executive Engineer to appear in person, held the Department 'too casual', and took the belated counter affidavit on record only on payment of Rs.25,000 costs for the welfare of lawyers, recoverable as arrears of land revenue. On final hearing (11.09.2019) the Court, finding complexed questions of fact (assessment of the bill, outstanding dues, objections filed and considered, and a disputed final determination), disposed of the writ by relegating the petitioner to the Consumer Grievance Redressal Forum under Clause 7.10 of the Supply Code, 2005 (to be approached within two weeks; grievance to be decided within four weeks after hearing), the recovery proceedings and citation to abide the Forum's final outcome. The two-year limitation plea was thus not finally decided but left to the Forum.

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HEADNOTE

An order-sheet writ (WRIT-C No. 66903 of 2009) in which the petitioner, Balwan Singh, whose electricity connection had been temporarily and, on the same day, permanently disconnected on 07.03.2006, challenged the licensee's recovery of Rs.2,09,669 - the balance left after the licensee waived Rs.5,28,156 - demanded by office memoranda dated 02.09.2009 and 29.10.2009. On the petitioner's plea that under Section 56(2) of the Electricity Act, 2003 read with Clause 6.15 of the U.P. Electricity Supply Code, 2005 an amount recoverable within two years could not be recovered thereafter, a Division Bench, by interim order dated 09.12.2009, held prima facie that the recovery - being made more than two years after the permanent disconnection - appeared time-barred, and stayed it. The Electricity Department then failed to file a counter affidavit for more than ten years despite that direction; the Court (15.05.2019) held it had been 'too casual', directed the Executive Engineer to appear in person, and took the belated counter affidavit on record only on payment of Rs.25,000 costs for the welfare of lawyers, recoverable as arrears of land revenue. At final hearing (11.09.2019) the Court found that the dispute - assessment of the bill, outstanding dues, objections filed and considered, and a disputed final determination - raised complexed questions of fact unsuited to writ jurisdiction, and, the parties agreeing that the petitioner had a remedy before the Consumer Grievance Redressal Forum under Clause 7.10 of the Supply Code, 2005, disposed of the writ by relegating him to that Forum (approach within two weeks; decision within four weeks), the recovery proceedings and citation to abide the Forum's final outcome. The two-year limitation plea was accordingly not finally decided but left to the Forum.

FACTUAL SUMMARY

The petitioner, Balwan Singh, held an electricity connection in the area of the Dakshinanchal Vidyut Vitran Nigam Ltd., Vidyut Vitran Khand, Hamirpur (respondent no. 2). His connection was temporarily and, on the same day, permanently disconnected on 07.03.2006. The licensee thereafter sought to recover Rs.2,09,669 from him, being the balance after it had waived Rs.5,28,156, pursuant to an office memorandum dated 02.09.2009 (and a further memorandum dated 29.10.2009). The petitioner filed WRIT-C No. 66903 of 2009 contending that, under Section 56(2) of the Electricity Act, 2003 read with Clause 6.15 of the U.P. Electricity Supply Code, 2005, an amount recoverable within two years could not be recovered after two years, and that the recovery - made more than two years after the permanent disconnection - was time-barred. By interim order dated 09.12.2009 (Vijay Manohar Sahai and Yogesh Chandra Gupta, JJ.) the Division Bench stayed the recovery on a prima facie view that it appeared time-barred; the writ was admitted on 27.01.2010 (Prakash Krishna and Yogesh Chandra Gupta, JJ.). The Electricity Department failed to file a counter affidavit for more than ten years; by orders dated 17.04.2019 and 15.05.2019 (Shashi Kant Gupta and Pankaj Bhatia, JJ.) the Court directed the Executive Engineer to appear in person and, finding the Department 'too casual', took the belated counter affidavit on record subject to Rs.25,000 costs for the welfare of lawyers, recoverable as arrears of land revenue. At the final hearing on 11.09.2019 (Ramesh Sinha and Ajit Kumar, JJ.) the respondent explained that the fresh 2009 demand had followed adjudication of a dispute raised by the petitioner before the competent authority, so Clause 6.15 would not apply; finding complexed questions of fact, the Court disposed of the writ by relegating the petitioner to the Consumer Grievance Redressal Forum under Clause 7.10 of the Supply Code, 2005.

REUSABLE CONSTRUCTIONS

1. Where recovery of electricity dues is sought more than two years after the permanent disconnection of the connection, the recovery is prima facie barred by the two-year limitation in Section 56(2) of the Electricity Act, 2003 read with Clause 6.15 of the U.P. Electricity Supply Code, 2005, and the consumer is entitled to an interim stay. **order of 09.12.2009**
2. Where the amount and validity of an electricity demand turn on complexed/disputed questions of fact - assessment of the bill, outstanding dues, objections filed and considered, and a disputed final determination - the writ court will not adjudicate them but will relegate the consumer to the Consumer Grievance Redressal Forum under Clause 7.10 of the Supply Code, 2005, the recovery proceedings and citation abiding the Forum's final decision. **order of 11.9.2019 para 5-6**
3. A distribution licensee's inordinate and unexplained delay - here more than ten years - in filing a counter affidavit while an interim stay of recovery subsists is 'too casual' conduct that may be visited with costs (Rs.25,000 for the welfare of lawyers, recoverable as arrears of land revenue) imposed as the condition on which the belated affidavit is taken on record. **order of 15.5.2019**

HOLDING-UNITS

INTERPLAY · EA2003::56(2)

OBITER

Recovery raised more than two years after permanent disconnection is prima facie time-barred

QUESTION

Can electricity dues be recovered more than two years after the permanent disconnection, given the two-year limitation in Section 56(2) of the Electricity Act, 2003 read with Clause 6.15 of the U.P. Electricity Supply Code, 2005?

HOLDING

Prima facie, no. The petitioner's connection was permanently disconnected on 07.03.2006, and the demand for Rs.2,09,669 was pressed through office memoranda of 02.09.2009 and 29.10.2009 - more than two years later. The Division Bench held, prima facie, that the recovery was being made after two years from the date of permanent disconnection and appeared time-barred, so the petitioner was entitled to an interim order and recovery was stayed. This was an interim/prima facie view; the limitation plea was ultimately left to the Consumer Grievance Redressal Forum and not finally decided. **order of 09.12.2009**

EVIDENCE “Prima facie it appears that the respondents are making recovery from the petitioner after a period of two years from the date of permanent disconnection. The recovery proceedings appears to be time barred. Therefore, the petitioner is entitled for interim order.” **order of 09.12.2009**

EVIDENCE “in view of section 56(2) of the Electricity Act, 2003 read with clause 6.15 of the Electricity Supply Code, 2005 the respondents cannot recover any amount from the petitioner after a period of two years which was recoverable within a period of two years” **order of 09.12.2009**

FLAG Compilation of order-sheets (09.12.2009-11.09.2019) with no printed page numbers; only the final order of 11.09.2019 is paragraph-numbered (paras 1-7). Pins reference the order dates. This holding is a prima facie interim observation - the limitation plea was not finally decided (see not_decided).

HOLDING-UNIT · UP-2005::7.10

RATIO

Disputed bill/assessment raising complexed questions of fact relegated to the CGRF; recovery to abide the Forum's outcome

QUESTION

Where the validity and quantum of an electricity demand turn on complexed, disputed questions of fact, should the writ court decide them or relegate the consumer to the Consumer Grievance Redressal Forum under Clause 7.10 of the Supply Code, 2005?

HOLDING

Relegate. The Court found complexed questions of fact - the assessment of the electricity bill, the outstanding dues, objections filed and considered, and a final determination which too was disputed - and, the parties agreeing that the petitioner had a remedy of approaching the Consumer Grievance Redressal Forum under Clause 7.10 of the Supply Code, 2005, disposed of the writ by directing that if the petitioner approached the Forum within two weeks his grievance

would be looked into and decided within four weeks after full hearing, the impugned recovery proceedings and citation being made subject to the Forum's final outcome. [order of 11.9.2019 para 5-7](#)

EVIDENCE “we find complexed questions of fact involved in this case regarding assesment of Electricity bill, outstanding dues, objections filed and considered and final determination which too has been disputed” [order of 11.9.2019 para 5](#)

EVIDENCE “the petitioner has a remedy of approaching Consumer Grievance Redressal Forum against the demand raised by the respondent-Corporation and the recovery issued pursuant thereto vide clause 7.10 of the Supply Code, 2005” [order of 11.9.2019 para 5](#)

EVIDENCE “The recovery proceedings and citation already issued and impugned in the present writ petition shall be subject to final outcome of the decision of the Consumer Grievance Redressal Forum.” [order of 11.9.2019 para 6](#)

FLAG Final operative order (11.09.2019, paras 1-7); this relegation is the ratio of the disposal.

PRINCIPLE TAGS

recovery-time-barred-two-years-after-permanent-disconnection The connection was permanently disconnected on 07.03.2006 and the demand was pressed through 2009 memoranda; the Court prima facie held the recovery, made more than two years after disconnection, time-barred under Section 56(2) of the Electricity Act, 2003 r/w Clause 6.15 of the Supply Code, and stayed it. [order of 09.12.2009](#)

disputed-bill-relegated-to-cgrf-clause-7.10 Finding complexed questions of fact on the assessment, outstanding dues, objections and a disputed final determination, the Court relegated the consumer to the Consumer Grievance Redressal Forum under Clause 7.10, the recovery and citation to abide the Forum's decision. [order of 11.9.2019 para 5-6](#)

costs-on-electricity-department-for-inordinate-delay-in-counter-affidavit The Department's failure to file a counter affidavit for over ten years despite the 09.12.2009 direction, while recovery remained stayed, was held 'too casual'; the belated affidavit was taken on record only subject to Rs.25,000 costs for the welfare of lawyers, recoverable as arrears of land revenue. [order of 17.4.2019](#); [order of 15.5.2019](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY IS BARRED BY THE TWO-YEAR LIMITATION IN SECTION 56(2) OF THE ELECTRICITY ACT, 2003 R/W CLAUSE 6.15 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The interim order of 09.12.2009 recorded only a prima facie view that the recovery appeared time-barred and stayed it; the respondent contended that a fresh demand was raised in 2009 after adjudication of the petitioner's dispute, so Clause 6.15 would not apply. The final order did not resolve the limitation plea, finding complexed questions of fact and relegating the petitioner to the Consumer Grievance Redressal Forum, with the recovery to abide that Forum's decision. [order of 11.9.2019 para 4-6](#)

NOT DECIDED — THE MERITS OF THE DEMAND - THE CORRECT ASSESSMENT OF THE BILL, THE OUTSTANDING DUES AND THE DISPUTED FINAL DETERMINATION

Expressly left to the Consumer Grievance Redressal Forum under Clause 7.10, to be decided within four weeks of the petitioner's approach after full opportunity of hearing; the writ court did not adjudicate these disputed questions of fact. [order of 11.9.2019 para 5](#)

RELATED CASES — SEE ALSO

SCJ-1264 — Joginder Singh (2010) - order-sheet writ against recovery of assessed dues raising the two-year limitation under Section 56(2) of the Electricity Act, 2003 read with Clause 6.15 - the same limitation pairing pleaded here.

SCJ-113 — Satya Narayan - Clause 6.15(1)(b) mirrors Section 56(2) and bars recovery of dues after two years from when first due; the substantive limitation principle the petitioner invoked in the interim order here.

SCJ-214 — Muneshwar Prasad Baranwal - interim order staying a recovery notice issued long after permanent disconnection as prima facie barred by Clause 6.15, mirroring the prima facie time-bar view taken on 09.12.2009 here.

SCJ-198 — Smt. Mamta Devi Srivastava - marks the boundary of the same provision: the Section 56(2) two-year bar does not apply to the current bills of a continuing consumer, contrasting with the post-disconnection recovery in issue here.

SCJ-1433 — Inayat Khan - a disputed electricity bill relegated to the Consumer Grievance Redressal Forum under Clause 7.10, the same alternate-remedy disposition adopted here on finding complexed questions of fact.

